

Shri Satish Saha vs . Smti Madhabi Saha on 4 August, 2022

Author: H. S. Thangkhiew

Bench: H. S. Thangkhiew

Serial No. 22
Regular List

HIGH COURT OF MEGHALAYA
AT SHILLONG

FA No. 1 of 2016

Date of Decision: 04.08.2022

Shri Satish Saha

Vs.

Smti Madhabi Saha

Coram:

Hon'ble Mr. Justice H. S. Thangkhiew, Judge

Appearance:

For the Petitioner(s)/Appellant(s): Ms. S. Bhattacharjee, Adv. with
Ms. I. Warjri, Adv.

For the Respondent(s) : Ms. P. Agarwal, Adv.

i) Whether approved for reporting in Law journals etc: Yes/No

ii) Whether approved for publication in press: Yes/No

JUDGMENT AND ORDER (ORAL)

1. This instant matter concerning a matrimonial dispute had been referred for mediation by this Court, to allow the parties to endeavour to arrive at a settlement. However, the mediation proceedings failed and no settlement could be achieved, as such, the matter has been listed for hearing again before this Court.

2. Today, Ms. P. Agarwal, learned counsel for the respondent submits that after due consideration by the respondent as to the factual circumstances surrounding the matter, especially to the fact that the parties have been living apart since 1996, the respondent is willing to accept the offer made by the appellant that had been made in the mediation proceedings for a settlement amount of Rs. 6 Lakhs and for dissolution of the marriage between the parties. The submissions are duly noted.

3. The appellant who is present in Court has reiterated the offer of settlement on the said amount of Rs. 6 Lakhs, but however prays that he may be allowed to complete the said payment in 3(three)

months. This proposal is not objected to by the counsel for the respondent.

4. Briefly adverting to the facts, the appellant and the respondent were married on 05.05.1995, but however, after eight months of marriage, the respondent left the matrimonial home, and thereafter filed a case for maintenance under Section 125 CrPC. On the orders of the Court, the appellant paid the monthly maintenance amount to the respondent. The appellant then filed a Divorce Suit being Divorce Suit No. 05/04, as since 1996, they were staying separately and conjugal life never resumed. The same was contested by the respondent who then prayed for restitution of conjugal rights. The learned District Judge, West Garo Hills, Tura, then by judgment and order dated 27.01.2016 dismissed the suit of the appellant for dissolution of the marriage and granted the prayer of the respondent for restitution of conjugal rights. The appellant being aggrieved thereby, had filed the instant Appeal under Section 28 (1) of the Hindu Marriage Act, 1955.

5. During the course of the entire proceedings, efforts had been made by the Courts to try to reconcile the parties, but, the same bore no fruit. It is also noted that, the monthly maintenance amount had also been raised to Rs. 5000/- (Rupees Five Thousand) only per month w.e.f. 01.12.2016, which the appellant was paying.

6. As the matter is now being set at rest, with the acceptance of the settlement amount, this matter shall stand closed. The impugned judgment dated 27.01.2016 passed in D.S No. 05/04 by the learned District Judge, West Garo Hills, Tura, is therefore set aside and the marriage between the parties stands dissolved according to the provisions of the Hindu Marriage Act, 1955. As per the settlement, that has been arrived at, the appellant is directed to pay the amount of Rs. 6 Lakhs, in 3 (three) instalments of Rs. 2 Lakhs each within a period of 3 (three) months from the date of this order into the account of the respondent, the account details of which shall be provided by the counsel for the respondent, to the counsel for the appellant within a period of 3 (three) days from the date of this order.

7. With the said directions, matter accordingly stands disposed of.

8. Records to be transmitted back to the Lower Court and Decree to be prepared accordingly within 5 (five) days of receipt of records thereof, in terms of this order.

JUDGE Meghalaya 04.08.2022 "V. Lyndem-PS"